

Ramakant Kanaugiya @ Vinod Kanaugiya v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 27 February 2023 · WRIT - C No. 5215 of 2023 · **Disposed; theft recovery withdrawn; fresh Supply Code order after hearing.**

HEADNOTE

A writ against a theft-recovery notice is disposed of when the electricity department withdraws the demand and undertakes to pass a fresh order after hearing, strictly in accordance with the procedure under the Electricity Supply Code, 2005. The Court does not examine the demand.

FACTUAL SUMMARY

Ramakant Kanaugiya alias Vinod Kanaugiya filed Writ-C No. 5215 of 2023 in the Allahabad High Court against the State of U.P. and the electricity department, challenging a demand notice dated 27 December 2022 for recovery of Rs. 77,691 for alleged theft of electricity. The Bench adjourned the matter on 15 February 2023 to show the department's counsel and, on 21 February 2023, granted three days for instructions. On 27 February 2023 counsel stated that the impugned recovery had been withdrawn and that a fresh order would follow after hearing.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Disposal on withdrawal of a theft-recovery notice

HOLDING

Once the licensee withdraws the impugned theft recovery and states that a fresh order will be passed after hearing the consumer, the writ is disposed of with liberty to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005, without the Court deciding the demand. ¶ 3

PRINCIPLE TAGS

procedural-listing-no-construction

The Division Bench recorded the department's withdrawal of the Rs. 77,691 theft recovery and disposed of the writ, reserving a fresh order after hearing under the Supply Code, without construing any clause. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY SUM IS RECOVERABLE FROM THE PETITIONER FOR THE ALLEGED THEFT OF ELECTRICITY

Left to a fresh order after opportunity of hearing, strictly in accordance with the Electricity Supply Code, 2005. ¶ 3